

THE DOMINANCE APPROACH

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Difference and Dominance: On Sex Discrimination

What is a gender question a question of? What is an inequality question a question of? These two questions underlie applications of the equality principle to issues of gender, but they are seldom explicitly asked. I think it speaks to the way gender has structured thought and perception that mainstream legal and moral theory tacitly gives the same answer to them both: these are questions of sameness and difference. The mainstream doctrine of the law of sex discrimination that results is, in my view, largely responsible for the fact that sex equality law has been so utterly ineffective at getting women what we need and are socially prevented from having on the basis of a condition of birth: a chance at productive lives of reasonable physical security, self-expression, individuation, and minimal respect and dignity. Here I expose the sameness/difference theory of sex equality, briefly show how it dominates sex discrimination law and policy and underlies its discontents, and propose an alternative that might do something.

According to the approach to sex equality that has dominated politics, law, and social perception, equality is an equivalence, not a distinction, and sex is a distinction. The legal mandate of equal treatment—which is both a systemic norm and a specific legal

doctrine—becomes a matter of treating likes alike and unlikes unlike; and the sexes are defined as such by their mutual unlikeness. Put another way, gender is socially constructed as difference epistemologically; sex discrimination law bounds gender equality by difference doctrinally. A built-in tension exists between this concept of equality, which presupposes sameness, and this concept of sex, which presupposes difference. Sex equality thus becomes a contradiction in terms, something of an oxymoron, which may suggest why we are having such a difficult time getting it.

Upon further scrutiny, two alternate paths to equality for women emerge within this dominant approach, paths that roughly follow the lines of this tension. The leading one is: be the same as men. This path is termed gender neutrality doctrinally and the single standard philosophically. It is testimony to how substance gets itself up as form in law that this rule is considered formal equality. Because this approach mirrors the ideology of the social world, it is considered abstract, meaning transparent of substance; also for this reason it is considered not only to be *the* standard, but *a* standard at all. It is so far the leading rule that the words “equal to” are code for, equivalent to, the words “the same as”—referent for both unspecified.

To women who want equality yet find that you are different, the doctrine provides an alternate route: be

different from men. This equal recognition of difference is termed the special benefit rule or special protection rule legally, the double standard philosophically. It is in rather bad odor. Like pregnancy, which always calls it up, it is something of a doctrinal embarrassment. Considered an exception to true equality and not really a rule of law at all, this is the one place where the law of sex discrimination admits it is recognizing something substantive. Together with the Bona Fide Occupational Qualification (BFOQ), the unique physical characteristic exception under ERA policy, compensatory legislation, and sex-conscious relief in particular litigation, affirmative action is thought to live here.¹

The philosophy underlying the difference approach is that sex *is* a difference, a division, a distinction, beneath which lies a stratum of human commonality, sameness. The moral thrust of the sameness branch of the doctrine is to make normative rules conform to this empirical reality by granting women access to what men have access to: to the extent that women are no different from men, we deserve what they have. The differences branch, which is generally seen as patronizing but necessary to avoid absurdity, exists to value or compensate women for what we are or have become distinctively as women (by which is meant, unlike men) under existing conditions.

My concern is not with which of these paths to sex equality is preferable in the long run or more appropriate to any particular issue, although most discourse on sex discrimination revolves about these questions as if that were all there is. My point is logically prior: to treat issues of sex equality as issues of sameness and difference *is to take a particular approach*. I call this the difference approach because it is obsessed with the sex difference. The main theme in the fugue is “we’re the same, we’re the same, we’re the same.” The counterpoint theme (in a higher register) is “but we’re different, but we’re different, but we’re different.” Its underlying story is: on the first day, difference was; on the second day, a division was created upon it; on the third day, irrational instances of dominance arose. Division may be rational or irrational. Dominance either seems or is justified. Difference *is*.

There is a politics to this. Concealed is the substantive way in which man has become the measure of all things. Under the sameness standard, women are measured according to our correspondence with man, our equality judged by our proximity to his measure. Under the difference standard, we are measured according to our lack of correspondence with him, our womanhood judged by our distance from his measure. Gender neutrality is thus simply the male standard, and the special protection rule is simply the female standard, but do not be deceived: masculinity, or maleness, is the referent for both. Think about it like those anatomy models in medical school. A male body is the human body; all those extra things women have are studied in ob/gyn. It truly is a situation in which more is less. Approaching sex discrimination in this way—as if sex questions are difference questions and equality questions are sameness questions—provides two ways for the law to hold women to a male standard and call that sex equality.

Having been very hard on the difference answer to sex equality questions, I should say that it takes up a very important problem: how to get women access to everything we have been excluded from, while also valuing everything that women are or have been allowed to become or have developed as a consequence of our struggle either not to be excluded from most of life’s pursuits or to be taken seriously under the terms that have been permitted to be our terms. It negotiates what we have managed in relation to men. Legally articulated as the need to conform normative standards to existing reality, the strongest doctrinal expression of its sameness idea would prohibit taking gender into account in any way.

Its guiding impulse is: we’re as good as you. Anything you can do, we can do. Just get out of the way. I have to confess a sincere affection for this approach. It has gotten women some access to employment² and education,³ the public pursuits, including academic,⁴ professional,⁵ and blue-collar work;⁶ the military;⁷ and more than nominal access to athletics.⁸ It has moved to change the dead ends that were all we were seen as good for and has altered

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what passed for women's lack of physical training, which was really serious training in passivity and enforced weakness. It makes you want to cry sometimes to know that it has had to be a mission for many women just to be permitted to do the work of this society, to have the dignity of doing jobs a lot of other people don't even want to do.

The issue of including women in the military draft⁹ has presented the sameness answer to the sex equality question in all its simple dignity and complex equivocality. As a citizen, I should have to risk being killed just like you. The consequences of my resistance to this risk should count like yours. The undercurrent is: what's the matter, don't you want me to learn to kill . . . just like you? Sometimes I see this as a dialogue between women in the afterlife. The feminist says to the soldier, "we fought for your equality." The soldier says to the feminist, "oh, no, we fought for *your* equality."

Feminists have this nasty habit of counting bodies and refusing not to notice their gender. As applied, the sameness standard has mostly gotten men the benefit of those few things women have historically had—for all the good they did us. Almost every sex discrimination case that has been won at the Supreme Court level has been brought by a man.¹⁰ Under the rule of gender neutrality, the law of custody and divorce has been transformed, giving men an equal chance at custody of children and at alimony.¹¹ Men often look like better "parents" under gender-neutral rules like level of income and presence of nuclear family, because men make more money and (as they say) initiate the building of family units.¹² In effect, they get preferred because society advantages them before they get into court, and law is prohibited from taking that preference into account because that would mean taking gender into account. The group realities that make women more in need of alimony are not permitted to matter, because only individual factors, gender-neutrally considered, may matter. So the fact that women will live their lives, as individuals, as members of the group women, with women's chances in a sex-discriminatory society, may not count, or else it is sex discrimination. The equality principle in this guise mobilizes the idea that the way

to get things for women is to get them for men. Men have gotten them. Have women? We still have not got equal pay,¹³ or equal work,¹⁴ far less equal pay for equal work,¹⁵ and we are close to losing separate enclaves like women's schools through this approach.¹⁶

Here is why. In reality, which this approach is not long on because it is liberal idealism talking to itself, virtually every quality that distinguishes men from women is already affirmatively compensated in this society. Men's physiology defines most sports,¹⁷ their needs define auto and health insurance coverage, their socially designed biographies define workplace expectations and successful career patterns, their perspectives and concerns define quality in scholarship, their experiences and obsessions define merit, their objectification of life defines art, their military service defines citizenship, their presence defines family, their inability to get along with each other—their wars and rulerships—defines history, their image defines god, and their genitals define sex. For each of their differences from women, what amounts to an affirmative action plan is in effect, otherwise known as the structure and values of American society. But whenever women are, by this standard, "different" from men and insist on not having it held against us, whenever a difference is used to keep us second class and we refuse to smile about it, equality law has a paradigm trauma and it's crisis time for the doctrine.

What this doctrine has apparently meant by sex inequality is not what happens to us. The law of sex discrimination that has resulted seems to be looking only for those ways women are kept down that have *not* wrapped themselves up as a difference—whether original, imposed, or imagined. Start with original: what to do about the fact that women actually have an ability men still lack, gestating children in utero. Pregnancy therefore is a difference. Difference doctrine says it is sex discrimination to give women what we need, because only women need it. It is not sex discrimination not to give women what we need because then only women will not get what we need.¹⁸ Move into imposed: what to do about the fact that most women are segregated into low-paying jobs where there are no men. Suspecting that the structure

of the marketplace will be entirely subverted if comparable worth is put into effect, difference doctrine says that because there is no man to set a standard from which women's treatment is a deviation, there is no sex discrimination here, only sex difference. Never mind that there is no man to compare with because no man would do that job if he had a choice, and of course he has because he is a man, so he won't.¹⁹

Now move into the so-called subtle reaches of the imposed category, the *de facto* area. Most jobs in fact require that the person, gender neutral, who is qualified for them will be someone who is not the primary caretaker of a preschool child.²⁰ Pointing out that this raises a concern of sex in a society in which women are expected to care for the children is taken as day one of taking gender into account in the structuring of jobs. To do that would violate the rule against not noticing situated differences based on gender, so it never emerges that day one of taking gender into account was the day the job was structured with the expectation that its occupant would have no child care responsibilities. Imaginary sex differences—such as between male and female applicants to administer estates or between males aging and dying and females aging and dying²¹—I will concede, the doctrine can handle.

I will also concede that there are many differences between women and men. I mean, can you imagine elevating one half of a population and denigrating the other half and producing a population in which everyone is the same? What the sameness standard fails to notice is that men's differences from women are equal to women's differences from men. There is an *equality* there. Yet the sexes are not socially equal. The difference approach misses the fact that hierarchy of power produces real as well as fantasied differences, differences that are also inequalities. What is missing in the difference approach is what Aristotle missed in his empiricist notion that equality means treating likes alike and unlikes unlike, and nobody has questioned it since. Why should you have to be the same as a man to get what a man gets simply because he is one? Why does maleness provide an original entitlement, not questioned on the basis of *its* gender, so that it is women—women who want to

make a case of unequal treatment in a world men have made in their image (this is really the part Aristotle missed)—who have to show in effect that they are men in every relevant respect, unfortunately mistaken for women on the basis of an accident of birth?

The women that gender neutrality benefits, and there are some, show the suppositions of this approach in highest relief. They are mostly women who have been able to construct a biography that somewhat approximates the male norm, at least on paper. They are the qualified, the least of sex discrimination's victims. When they are denied a man's chance, it looks the most like sex bias. The more unequal society gets, the fewer such women are permitted to exist. Therefore, the more unequal society gets, the *less* likely the difference doctrine is to be able to do anything about it, because unequal power creates both the appearance and the reality of sex differences along the same lines as it creates its sex inequalities.

The special benefits side of the difference approach has not compensated for the differential of being second class. The special benefits rule is the only place in mainstream equality doctrine where you get to identify as a woman and not have that mean giving up all claim to equal treatment—but it comes close. Under its double standard, women who stand to inherit something when their husbands die have gotten the exclusion of a small percentage of the inheritance tax, to the tune of Justice Douglas waxing eloquent about the difficulties of all women's economic situation.²² If we're going to be stigmatized as different, it would be nice if the compensation would fit the disparity. Women have also gotten three more years than men get before we have to be advanced or kicked out of the military hierarchy, as compensation for being precluded from combat, the usual way to advance.²³ Women have also gotten excluded from contact jobs in male-only prisons because we might get raped, the Court taking the viewpoint of the reasonable rapist on women's employment opportunities.²⁴ We also get protected out of jobs because of our fertility. The reason is that the job has health hazards, and somebody who might be a real person some day and therefore could sue—that is, a fetus—might be hurt if women, who apparently are not real persons and therefore

can't sue either for the hazard to our health or for the lost employment opportunity, are given jobs that subject our bodies to possible harm.²⁵ Excluding women is always an option if equality feels in tension with the pursuit itself. They never seem to think of excluding men. Take combat.²⁶ Somehow it takes the glory out of the foxhole, the buddiness out of the trenches, to imagine us out there. You get the feeling they might rather end the draft, they might even rather not fight wars at all than have to do it with us.

The double standard of these rules doesn't give women the dignity of the single standard; it also does not (as the differences standard does) suppress the gender of its referent, which is, of course, the female gender. I must also confess some affection for this standard. The work of Carol Gilligan on gender differences in moral reasoning²⁷ gives it a lot of dignity, more than it has ever had, more, frankly, than I thought it ever could have. But she achieves for moral reasoning what the special protection rule achieves in law: the affirmative rather than the negative valuation of that which has accurately distinguished women from men, by making it seem as though those attributes, with their consequences, really are somehow ours, rather than what male supremacy has attributed to us for its own use. For women to affirm difference, when difference means dominance, as it does with gender, means to affirm the qualities and characteristics of powerlessness.

Women have done good things, and it is a good thing to affirm them. I think quilts are art. I think women have a history. I think we create culture. I also know that we have not only been excluded from making what has been considered art; our artifacts have been excluded from setting the standards by which art is art. Women have a history all right, but it is a history both of what was and of what was not allowed to be. So I am critical of affirming what we have been, which necessarily is what we have been permitted, as if it is women's, ours, possessive. As if equality, in spite of everything, already ineluctably exists.

I am getting hard on this and am about to get harder on it. I do not think that the way women reason morally is morality "in a different voice."²⁸ I think it is morality in a higher register, in the feminine voice.

Women value care because men have valued us according to the care we give them, and we could probably use some. Women think in relational terms because our existence is defined in relation to men. Further, when you are powerless, you don't just speak differently. A lot, you don't speak. Your speech is not just differently articulated, it is silenced. Eliminated, gone. You aren't just deprived of a language with which to articulate your distinctiveness, although you are; you are deprived of a life out of which articulation might come. Not being heard is not just a function of lack of recognition, not just that no one knows how to listen to you, although it is that; it is also silence of the deep kind, the silence of being prevented from having anything to say. Sometimes it is permanent. All I am saying is that the damage of sexism is real, and reifying that into differences is an insult to our possibilities.

So long as these issues are framed this way, demands for equality will always appear to be asking to have it both ways: the same when we are the same, different when we are different. But this is the way men have it: equal and different too. They have it the same as women when they are the same and want it, and different from women when they are different and want to be, which usually they do. Equal and different too would only be parity.²⁹ But under male supremacy, while being told we get it both ways, both the specialness of the pedestal and an even chance at the race, the ability to be a woman and a person, too, few women get much benefit of either.

There is an alternative approach, one that threads its way through existing law and expresses, I think, the reason equality law exists in the first place. It provides a second answer, a dissident answer in law and philosophy, to both the equality question and the gender question. In this approach, an equality question is a question of the distribution of power. Gender is also a question of power, specifically of male supremacy and female subordination. The question of equality, from the standpoint of what it is going to take to get it, is at root a question of hierarchy, which—as power succeeds in constructing social perception and social

reality—derivatively becomes a categorical distinction, a difference. Here, on the first day that matters, dominance was achieved, probably by force. By the second day, division along the same lines had to be relatively firmly in place. On the third day, if not sooner, differences were demarcated, together with social systems to exaggerate them in perception and in fact, *because* the systematically differential delivery of benefits and deprivations required making no mistake about who was who. Comparatively speaking, man has been resting ever since. Gender might not even code as difference, might not mean distinction epistemologically, were it not for its consequences for social power.

I call this the dominance approach, and it is the ground I have been standing on in criticizing mainstream law. The goal of this dissident approach is not to make legal categories trace and trap the way things are. It is not to make rules that fit reality. It is critical of reality. Its task is not to formulate abstract standards that will produce determinate outcomes in particular cases. Its project is more substantive, more jurisprudential than formulaic, which is why it is difficult for the mainstream discourse to dignify it as an approach to doctrine or to imagine it as a rule of law at all. It proposes to expose that which women have had little choice but to be confined to, in order to change it.

The dominance approach centers on the most sex-differential abuses of women as a gender, abuses that sex equality law in its difference garb could not confront. It is based on a reality about which little of a systematic nature was known before 1970, a reality that calls for a new conception of the problem of sex inequality. This new information includes not only the extent and intractability of sex segregation into poverty, which has been known before, but the range of issues termed violence against women, which has not been. It combines women's material desperation, through being relegated to categories of jobs that pay nil, with the massive amount of rape and attempted rape—44 percent of all women—about which virtually nothing is done;³⁰ the sexual assault of children—38 percent of girls and 10 percent of boys—which is apparently endemic to the patriarchal family;³¹ the

battery of women that is systematic in one quarter to one third of our homes;³² prostitution, women's fundamental economic condition, what we do when all else fails, and for many women in this country, all else fails often;³³ and pornography, an industry that traffics in female flesh, making sex inequality into sex to the tune of eight billion dollars a year in profits largely to organized crime.³⁴

These experiences have been silenced out of the difference definition of sex equality largely because they happen almost exclusively to women. Understand: for this reason, they are considered *not* to raise sex equality issues. Because this treatment is done almost uniquely to women, it is implicitly treated as a difference, the sex difference, when in fact it is the socially situated subjection of women. The whole point of women's social relegation to inferiority as a gender is that for the most part these things aren't done to men. Men are not paid half of what women are paid for doing the same work on the basis of their equal difference. Everything they touch does not turn valueless because they touched it. When they are hit, a person has been assaulted. When they are sexually violated, it is not simply tolerated or found entertaining or defended as the necessary structure of the family, the price of civilization, or a constitutional right.

Does this differential describe the sex difference? Maybe so. It does describe the systematic relegation of an entire group of people to a condition of inferiority and attribute it to their nature. If this differential were biological, maybe biological intervention would have to be considered. If it were evolutionary, perhaps men would have to evolve differently. Because I think it is political, I think its politics construct the deep structure of society. Men who do not rape women have nothing wrong with their hormones. Men who are made sick by pornography and do not eroticize their revulsion are not under-evolved. This social status in which we can be used and abused and trivialized and humiliated and bought and sold and passed around and patted on the head and put in place and told to smile so that we look as though we're enjoying it all is not what some of us have in mind as sex equality.

This second approach—which is not abstract, which is at odds with socially imposed reality and

therefore does not look like a standard according to the standard for standards—became the implicit model for racial justice applied by the courts during the sixties. It has since eroded with the erosion of judicial commitment to racial equality. It was based on the realization that the condition of Blacks in particular was not fundamentally a matter of rational or irrational differentiation on the basis of race but was fundamentally a matter of white supremacy, under which racial differences became invidious as a consequence.³⁵ To consider gender in this way, observe again that men are as different from women as women are from men, but socially the sexes are not equally powerful. To be on the top of a hierarchy is certainly different from being on the bottom, but that is an obfuscatingly neutralized way of putting it, as a hierarchy is a great deal more than that. If gender were merely a question of difference, sex inequality would be a problem of mere sexism, of mistaken differentiation, of inaccurate categorization of individuals. This is what the difference approach thinks it is and is therefore sensitive to. But if gender is an inequality first, constructed as a socially relevant differentiation in order to keep that inequality in place, then sex inequality questions are questions of systematic dominance, of male supremacy, which is not at all abstract and is anything but a mistake.

If differentiation into classifications, in itself, is discrimination, as it is in difference doctrine, the use of law to change group-based social inequalities becomes problematic, even contradictory. This is because the group whose situation is to be changed must necessarily be legally identified and delineated, yet to do so is considered in fundamental tension with the guarantee against legally sanctioned inequality. If differentiation is discrimination, affirmative action, and any legal change in social inequality, is discrimination—but the existing social differentiations which constitute the inequality are not? This is only to say that, in the view that equates differentiation with discrimination, changing an unequal status quo is discrimination, but allowing it to exist is not.

Looking at the difference approach and the dominance approach from each other's point of view clarifies some otherwise confusing tensions in sex

equality debates. From the point of view of the dominance approach, it becomes clear that the difference approach adopts the point of view of male supremacy on the status of the sexes. Simply by treating the status quo as "the standard," it invisibly and uncritically accepts the arrangements under male supremacy. In this sense, the difference approach is masculinist, although it can be expressed in a female voice. The dominance approach, in that it sees the inequalities of the social world from the standpoint of the subordination of women to men, is feminist.

If you look through the lens of the difference approach at the world as the dominance approach imagines it—that is, if you try to see real inequality through a lens that has difficulty seeing an inequality as an inequality if it also appears as a difference—you see demands for change in the distribution of power as demands for special protection. This is because the only tools that the difference paradigm offers to comprehend disparity equate the recognition of a gender line with an admission of lack of entitlement to equality under law. Since equality questions are primarily confronted in this approach as matters of empirical fit³⁶—that is, as matters of accurately shaping legal rules (implicitly modeled on the standard men set) to the way the world is (also implicitly modeled on the standard men set)—any existing differences must be negated to merit equal treatment. For ethnicity as well as for gender, it is basic to mainstream discrimination doctrine to preclude any true diversity among equals or true equality within diversity.

To the difference approach, it further follows that any attempt to change the way the world actually is looks like a moral question requiring a separate judgment of how things ought to be. This approach imagines asking the following disinterested question that can be answered neutrally as to groups: against the weight of empirical difference, should we treat some as the equals of others, even when they may not be entitled to it because they are not up to standard? Because this construction of the problem is part of what the dominance approach unmasks, it does not arise with the dominance approach, which therefore does not see its own foundations as moral. If sex inequalities are approached as matters of imposed

status, which are in need of change if a legal mandate of equality means anything at all, the question whether women should be treated unequally means simply whether women should be treated as less. When it is exposed as a naked power question, there is no separable question of what ought to be. The only real question is what is and is not a gender question. Once no amount of difference justifies treating women as subhuman, eliminating that is what equality law is for. In this shift of paradigms, equality propositions become no longer propositions of good and evil, but of power and powerlessness, no more disinterested in their origins or neutral in their arrival at conclusions than are the problems they address.

There came a time in Black people's movement for equality in this country when slavery stopped being a question of how it could be justified and became a question of how it could be ended. Racial disparities surely existed, or racism would have been harmless, but at that point—a point not yet reached for issues of sex—no amount of group difference mattered anymore. This is the same point at which a group's characteristics, including empirical attributes, become constitutive of the fully human, rather than being defined as exceptions to or as distinct from the fully human. To one-sidedly measure one group's differences against a standard set by the other incarnates partial standards. The moment when one's particular qualities become part of the standard by which humanity is measured is a millennial moment.

To summarize the argument: seeing sex equality questions as matters of reasonable or unreasonable classification is part of the way male dominance is expressed in law. If you follow my shift in perspective from gender as difference to gender as dominance, gender changes from a distinction that is presumptively valid to a detriment that is presumptively suspect. The difference approach tries to map reality; the dominance approach tries to challenge and change it. In the dominance approach, sex discrimination stops being a question of morality and starts being a question of politics.

You can tell if sameness is your standard for equality if my critique of hierarchy looks like a request for special protection in disguise. It's not. It

envision a change that would make possible a simple equal chance for the first time. To define the reality of sex as difference and the warrant of equality as sameness is wrong on both counts. Sex, in nature, is not a bipolarity; it is a continuum. In society it is made into a bipolarity. Once this is done, to require that one be the same as those who set the standard—those which one is already socially defined as different from—simply means that sex equality is conceptually designed never to be achieved. Those who most need equal treatment will be the least similar, socially, to those whose situation sets the standard as against which one's entitlement to be equally treated is measured. Doctrinally speaking, the deepest problems of sex inequality will not find women "similarly situated"³⁷ to men. Far less will practices of sex inequality require that acts be intentionally discriminatory.³⁸ All that is required is that the status quo be maintained. As a strategy for maintaining social power first structure reality unequally, then require that entitlement to alter it be grounded on a lack of distinction in situation; first structure perception so that different equals inferior, then require that discrimination be activated by evil minds who *know* they are treating equals as less.

I say, give women equal power in social life. Let what we say matter, then we will discourse on questions of morality. Take your foot off our necks, then we will hear in what tongue women speak. So long as sex equality is limited by sex difference, whether you like it or don't like it, whether you value it or seek to negate it, whether you stake it out as a grounds for feminism or occupy it as the terrain of misogyny, women will be born, degraded, and die. We would settle for that equal protection of the laws under which one would be born, live, and die, in a country where protection is not a dirty word and equality is not a special privilege.

NOTES

The most memorable occasions on which I delivered a version of this speech were: Harvard Law School, Cambridge, Massachusetts, Oct. 24, 1984; Conference on

the Moral Foundations of Civil Rights Policy, Center for Philosophy and Public Policy, University of Maryland, College Park, Maryland, Oct. 19, 1984; and the James McCormick Mitchell Lecture, State University of Buffalo Law School, Buffalo, New York, Oct. 19, 1984. I thank the students of Harvard Law School for their response to so many of my initial thoughts.

1. The Bona Fide Occupational Qualification (BFOQ) exception to Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000 e-2(e), permits sex to be a job qualification when it is a valid one. The leading interpretation of the proposed federal Equal Rights Amendment would, pursuing a similar analytic structure, permit a "unique physical characteristic" exception to its otherwise absolute embargo on taking sex into account. Barbara Brown, Thomas I. Emerson, Gail Falk, and Ann E. Freedman, "The Equal Rights Amendment: A Constitutional Basis for Equal Rights for Women," 80 *Yale Law Journal* 893 (1971).

2. Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000 e; Phillips v. Martin-Marietta, 400 U.S. 542 (1971). Frontiero v. Richardson, 411 U.S. 484 (1974) is the high-water mark of this approach. See also City of Los Angeles v. Manhart, 435 U.S. 702 (1978); Newport News Shipbuilding and Dry Dock Co. v. EEOC, 462 U.S. 669 (1983).

3. Title IX of the Education Amendments of 1972, 20 U.S.C. § 1681; Cannon v. University of Chicago, 441 U.S. 677 (1981); Mississippi University for Women v. Hogan, 458 U.S. 718 (1982); see also De La Cruz v. Tormey, 582 F.2d 45 (9th Cir. 1978).

4. My impression is that women appear to lose most academic sex discrimination cases that go to trial, although I know of no systematic or statistical study on the subject. One case that won eventually, elevating the standard of proof in the process, is Sweeney v. Board of Trustees of Keene State College, 439 U.S. 29 (1979). The ruling for the plaintiff was affirmed on remand, 604 F.2d 106 (1st Cir. 1979).

5. Hishon v. King & Spalding, 467 U.S. 69 (1984).

6. See, e.g., Vanguard Justice v. Hughes, 471 F. Supp. 670 (D. Md. 1979); Meyer v. Missouri State Highway Commission, 567 F.2d 804, 891 (8th Cir. 1977). Payne v. Travenol Laboratories Inc., 416 F. Supp. 248 (N.D. Mass. 1976). See also Dothard v. Rawlinson, 433 U.S. 321 (1977) (height and weight requirements invalidated for prison guard contact positions because of disparate impact on sex).

7. Frontiero v. Richardson, 411 U.S. 484 (1974); Schlesinger v. Ballard, 419 U.S. 498 (1975).

8. This situation is relatively complex. See Gomes v. R.I. Interscholastic League, 469 F. Supp. 659 (D. R.I.

1979); Brenden v. Independent School District, 477 F.2d 1292 (8th Cir. 1973); O'Connor v. Board of Education of School District No. 23, 645 F.2d 578 (7th Cir. 1981); Cape v. Tennessee Secondary School Athletic Association, 424 F. Supp. 732 (E.D. Tenn. 1976), rev'd, 563 F.2d 793 (6th Cir. 1977); Yellow Springs Exempted Village School District Board of Education v. Ohio High School Athletic Association, 443 F. Supp. 753 (S.D. Ohio 1978); Aiken v. Lieuallen, 593 P.2d 1243 (Or. App. 1979).

9. Rostker v. Goldberg, 453 U.S. 57 (1981). See also Lori S. Kornblum, "Women Warriors in a Men's World: The Combat Exclusion," 2 *Law and Inequality: A Journal of Theory and Practice* 353 (1984).

10. David Cole, "Strategies of Difference: Litigating for Women's Rights in a Man's World," 2 *Law & Inequality: A Journal of Theory and Practice* 34 n.4 (1984) (collecting cases).

11. Devine v. Devine, 398 So. 2d 686 (Ala. Sup. Ct. 1981); Danielson v. Board of Higher Education, 358 F. Supp. 22 (S.D.N.Y. 1972); Weinberger v. Wiesenfeld, 420 U.S. 636 (1975); Stanley v. Illinois, 405 U.S. 645 (1971); Caban v. Mohammed, 441 U.S. 380 (1979); Orr v. Orr, 440 U.S. 268 (1979).

12. Lenore Weitzman, "The Economics of Divorce: Social and Economic Consequences of Property, Alimony and Child Support Awards," 28 *U.C.L.A. Law Review* 1118, 1251 (1982), documents a decline in women's standard of living of 73 percent and an increase in men's of 42 percent within a year after divorce.

13. Equal Pay Act, 29 U.S.C. § 206(d)(1) (1976) guarantees pay equality, as does case law, but cf. data on pay gaps, "Introduction," note 2. MacKinnon, *Feminism Unmodified*. Cambridge, Mass: Harvard University Press, 1987.

14. Examples include Christenson v. State of Iowa, 563 F.2d 353 (8th Cir. 1977); Gerlach v. Michigan Bell Tel. Co., 501 F. Supp. 1300 (E.D. Mich. 1980); Odomes v. Nucare, Inc., 653 F.2d 246 (6th Cir. 1981) (female nurse's aide denied Title VII remedy because her job duties were not substantially similar to those of better-paid male orderly); Power v. Barry County, Michigan, 539 F. Supp. 721 (W.D. Mich. 1982); Spaulding v. University of Washington, 740 F.2d 686 (9th Cir. 1984).

15. County of Washington v. Gunther, 452 U.S. 161 (1981) permits a comparable worth-type challenge where pay inequality can be proven to be a correlate of intentional job segregation. See also Lemons v. City and County of Denver, 17 FEP Cases 910 (D. Colo. 1978), aff'd, 620 F.2d 228 (10th Cir. 1977), cert. denied, 449 U.S. 888 (1980);

AFSCME v. State of Washington, 770 F.2d 1401 (9th Cir. 1985). See generally Carol Jean Pint, "Value, Work and Women," 1 *Law & Inequality: A Journal of Theory and Practice* 159 (1983).

16. Combine the result in Bob Jones University v. United States, 461 U.S. 547 (1983) with Mississippi University for Women v. Hogan, 458 U.S. 718 (1982), and the tax-exempt status of women-only schools is clearly threatened.

17. A particularly pungent example comes from a case in which the plaintiff sought to compete in boxing matches with men, since there were no matches sponsored by the defendant among women. A major reason that preventing the woman from competing was found not to violate her equality rights was that the "safety rules and precautions [were] developed, designed, and tested in the context of all-male competition." Lafer v. Athletic Board of Control, 536 F. Supp. 104, 107 (W.D. Mich. 1982). As the court put it: "In this case, the real differences between the male and female anatomy are relevant in considering whether men and women may be treated differently with regard to their participating in boxing. The plaintiff admits that she wears a protective covering for her breasts while boxing. Such a protective covering . . . would violate Rule Six, Article 9 of the Amateur Boxing Federation rules currently in effect. The same rule requires contestants to wear a protective cup, a rule obviously designed for the unique anatomical characteristics of men." Id. at 106 (emphasis added). The rule is based on the male anatomy, therefore not a justification for the discrimination but an example of it. This is not considered in the opinion, nor does the judge discuss whether women might benefit from genital protection, and men from chest guards, as in some other sports.

18. This is a reference to the issues raised by several recent cases which consider whether states' attempts to compensate pregnancy leaves and to secure jobs on return constitute sex discrimination. California Federal Savings and Loan Assn. v. Guerra, 758 F.2d 390 (9th Cir. 1985), cert. granted 54 U.S.L.W. 3460 (U.S. Jan. 13, 1986); see also Miller-Wohl v. Commissioner of Labor, 515 F. Supp. 1264 (D. Montana 1981), vacated and dismissed, 685 F.2d 1088 (9th Cir. 1982). The position argued in "Difference and Dominance" here suggests that if these benefits are prohibited under Title VII, Title VII is unconstitutional under the equal protection clause.

This argument was not made directly in either case. The American Civil Liberties Union argued that the provisions requiring pregnancy to be compensated in employment, without comparable coverage for men, violated Title VII's

prohibition on pregnancy-based classifications and on sex. Montana had made it illegal for an employer to "terminate a woman's employment because of her pregnancy" or to "refuse to grant to the employee a reasonable leave of absence for such pregnancy." Montana Maternity Leave Act § 49-2-310(1) and (2). According to the ACLU this provision "grants pregnant workers certain employment rights not enjoyed by other workers . . . Legislation designed to benefit women has . . . perpetuated destructive stereotypes about their proper roles and operated to deny them rights and benefits enjoyed by men. The [Montana provision] deters employers from hiring women who are or may become pregnant, causes resentment and hostility in the workplace, and penalizes men." Brief of American Civil Liberties Union, et al. *amicus curiae*, Montana Supreme Court No. 84-172, at 7. The National Organization for Women argued that the California provision, which requires employers to give pregnant workers unpaid disability leave with job security for up to four months, would violate Title VII should Title VII be interpreted to permit it. Brief of National Organization for Women, et al., United States Court of Appeals for the Ninth Circuit, 685 F.2d 1088 (9th Cir. 1982).

When Congress passed the Pregnancy Discrimination Act, amending Title VII, 42 U.S.C. § 2000 e(k), it defined "because of sex" or "on the basis of sex" to include "because of or on the basis of pregnancy, childbirth, or related medical conditions; and women affected by pregnancy, childbirth, or related medical conditions shall be treated the same for all employment-related purposes." In so doing, Congress arguably decided that one did not have to be the same as a man to be treated without discrimination, since it guaranteed freedom from discriminatory treatment on the basis of a condition that is not the same for men as it is for women. It even used the word "women" in the statute.

Further, Congress made this decision expressly to overrule the Supreme Court decision in General Electric v. Gilbert, 429 U.S. 125 (1976), which had held that failure to cover pregnancy as a disability was not sex discrimination because the line between pregnant and nonpregnant was not the line between women and men. In rejecting this logic, as the Court found it did expressly in Newport News Shipbuilding and Dry Dock Co. v. EEOC, 462 U.S. 669, 678 (1983), Congress rejected the implicit measuring of women's entitlement to equality by a male standard. Nor need all women be the same, that is, pregnant or potentially so, to have pregnancy-based discrimination be sex-based discrimination.

Upholding the California pregnancy leave and job security law, the Ninth Circuit opinion did not require sameness for equality to be delivered: "The PDA does not require states to ignore pregnancy. It requires that women be treated equally . . . [E]quality under the PDA must be measured in employment opportunity, not necessarily in amounts of money expended—or in amounts of days of disability leave expended. Equality . . . compares coverage to actual need, not coverage to hypothetical identical needs." *California Federal v. Guerra*, 758 F.2d 390 (9th Cir. 1985) (Ferguson, J.). "We are not the first court to announce the goal of Title VII is equality of employment opportunity, not necessarily sameness of treatment." *Id.* at 396 n.7.

19. Most women work at jobs mostly women do, and most of those jobs are paid less than jobs that mostly men do. See, e.g., Pint, note 15 above, at 162–63 nn.19, 20 (collecting studies). To the point that men may not meet the male standard themselves, one court found that a union did not fairly represent its women in the following terms: "As to the yard and driver jobs, defendants suggest not only enormous intellectual requirements, but that the physical demands of those jobs are so great as to be beyond the capacity of any female. Again, it is noted that plaintiffs' capacity to perform those jobs was never tested, despite innumerable requests therefor. It is also noted that defendants have never suggested which of the innumerable qualifications they list for these jobs (for the first time) the plaintiffs might fail to meet. The court, however, will accept without listing here the extraordinary catalogue of feats which defendants argue must be performed in the yard, and as a driver. That well may be. However, one learns from this record that one cannot be too weak, too sick, too old and infirm, or too ignorant to perform these jobs, *so long as one is a man*. The plaintiffs appear to the layperson's eye to be far more physically fit than many of the drivers who moved into the yard, over the years, according to the testimony of defense witnesses . . . In short, they were all at least as fit as the men with serious physical deficits and disabilities who held yard jobs." *Jones v. Cassens Transport*, 617 F. Supp. 869, 892 (1985) (emphasis in original).

20. *Phillips v. Martin-Marietta*, 400 U.S. 542 (1971).

21. *Reed v. Reed*, 404 U.S. 71 (1971) held that a statute barring women from administering estates is sex discrimination. If few women were taught to read and write, as used to be the case, the gender difference would not be imaginary in this case, yet the social situation would be even more sex discriminatory than it is now. Compare *City of Los Angeles v. Manhart*, 434 U.S. 815 (1978), which held

that requiring women to make larger contributions to their retirement plan was sex discrimination, in spite of the allegedly proven sex difference that women on the average outlive men.

22. *Kahn v. Shevin*, 416 U.S. 351, 353 (1974).

23. *Schlesinger v. Ballard*, 419 U.S. 498 (1975).

24. *Dothard v. Rawlinson*, 433 U.S. 321 (1977); see also *Michael M. v. Sonoma County Superior Court*, 450 U.S. 464 (1981).

25. *Doerr v. B.F. Goodrich*, 484 F. Supp. 320 (N.D. Ohio 1979). Wendy Webster Williams, "Firing the Woman to Protect the Fetus: The Reconciliation of Fetal Protection with Employment Opportunity Goals Under Title VII," 69 *Georgetown Law Journal* 641 (1981). See also *Hayes v. Shelby Memorial Hospital*, 546 F. Supp. 259 (N.D. Ala. 1982); *Wright v. Olin Corp.*, 697 F.2d 1172 (4th Cir. 1982).

26. Congress requires the Air Force (10 U.S.C. § 8549 [1983]) and the Navy (10 U.S.C. § 6015 [1983]) to exclude women from combat, with some exceptions. *Owens v. Brown*, 455 F. Supp. 291 (D.D.C. 1978), had previously invalidated the prior Navy combat exclusion because it prohibited women from filling jobs they could perform and inhibited Navy's discretion to assign women on combat ships. The Army excludes women from combat based upon its own policies under congressional authorization to determine assignment (10 U.S.C. § 3012 [e] [1983]).

27. Carol Gilligan, *In a Different Voice* (1982).

28. *Id.*

29. I argued this in Appendix A of my *Sexual Harassment of Working Women: A Case of Sex Discrimination* (1979). That book ends with "Women want to be equal and different, too." I could have added "Men are." As a standard, this would have reduced women's aspirations for equality to some corresponding version of men's actualities. But as an observation, it would have been true.

30. Diana Russell and Nancy Howell, "The Prevalence of Rape in the United States Revisited," 8 *Signs: Journal of Women in Culture and Society* 689 (1983) (44 percent of women in 930 households were victims of rape or attempted rape at some time in their lives).

31. Diana Russell, "The Incidence and Prevalence of Intrafamilial and Extrafamilial Sexual Abuse of Female Children," 7 *Child Abuse & Neglect: The International Journal* 133 (1983).

32. R. Emerson Dobash and Russell Dobash, *Violence against Wives: A Case against the Patriarchy* (1979); *Bruno v. Codd*, 90 Misc. 2d 1047, 396 N.Y.S. 2d 974 (Sup. Ct. 1977), rev'd, 64 A.D. 2d 582, 407 N.Y.S. 2d 165

(1st Dep't 1978), aff'd 47 N.Y. 2d 582, 393 N.E. 2d 976, 419 N.Y.S. 2d 901 (1979).

33. Kathleen Barry, *Female Sexual Slavery* (1979); Moira K. Griffin, "Wives, Hookers and the Law: The Case for Decriminalizing Prostitution," 10 *Student Lawyer* 18 (1982); Report of Jean Fernand-Laurent, Special Rapporteur on the Suppression of the Traffic in Persons and the Exploitation of the Prostitution of Others (a United Nations report), in *International Feminism: Networking against Female Sexual Slavery* 130 (Kathleen Barry, Charlotte Bunch, and Shirley Castley eds.) (Report of the Global Feminist Workshop to Organize against Traffic in Women, Rotterdam, Netherlands, Apr. 6–15, 1983 [1984]).

34. Galloway and Thornton, "Crackdown on Pornography—A No-Win Battle," *U.S. News and World Report*, June 4, 1984, at 84. See also "The Place of Pornography," *Harper's*, November 1984, at 31 (citing \$7 billion per year).

35. *Loving v. Virginia*, 388 U.S. 1 (1967), first used the term "white supremacy" in invalidating an antimiscegenation law as a violation of equal protection. The law equally forbade whites and Blacks to intermarry. Although going nowhere near as far, courts in the athletics area have sometimes seen that "same" does not necessarily mean "equal" nor does "equal" require "same." In a context of sex inequality like that which has prevailed in athletic opportunity, allowing boys to compete on girls' teams may diminish overall sex equality. "Each position occupied by a male reduces the female participation and increases the overall disparity of athletic opportunity which generally exists." *Petrie v. Illinois High School Association*, 394 N.E. 2d 855, 865 (Ill. 1979). "We conclude that to furnish exactly the same athletic opportunities to boys as to girls would be most difficult and would be detrimental to the compelling governmental interest of equalizing general athletic opportunities between the sexes." *Id.*

36. The scholars Tussman and tenBroek first used the term "fit" to characterize the necessary relation between a valid equality rule and the world to which it refers. J. Tussman and J. tenBroek, "The Equal Protection of the Laws," 37 *California Law Review* 341 (1949).

37. *Royster Guano Co. v. Virginia*, 253 U.S. 412, 415 (1920): "[A classification] must be reasonable, not arbitrary, and must rest upon some ground of difference having a fair and substantial relation to the object of the legislation, so that all persons similarly circumstanced shall be treated

alike." *Reed v. Reed*, 404 U.S. 71, 76 (1971): "Regardless of their sex, persons within any one of the enumerated classes . . . are similarly situated . . . By providing dissimilar treatment for men and women who are thus similarly situated, the challenged section violates the Equal Protection Clause."

38. *Washington v. Davis*, 426 U.S. 229 (1976) and *Personnel Administrator of Massachusetts v. Feeney*, 442 U.S. 256 (1979) require that intentional discrimination be shown for discrimination to be shown.

Study Questions

MacKinnon sketches two approaches to sex equality, viz., the *difference* approach and the *dominance* approach. Note that she also speaks of a "differences" (or "special benefits") path and a "sameness" path, both under the rubric of the *difference* approach. This can be confusing, so beware.

1. According to MacKinnon, how are sex and equality understood within the difference approach to sex equality? What does MacKinnon mean when she asserts that, given these definitions, "sex equality" is an oxymoron?
2. On the "sameness path" of the difference approach, how does one argue for equal treatment of women? And on the "differences path"?
3. State one criticism made by MacKinnon of the difference approach as a whole and one criticism of each of its paths.
4. According to MacKinnon, how are sex and equality understood within the dominance approach to sex equality? Why, according to MacKinnon, is this approach superior to the difference approach?
5. Do the "sameness path" and "difference path" map meaningfully onto the sameness and difference approaches outlined in this text? Do MacKinnon's criticisms of those paths apply to the works grouped under those headings in this text?